

25TRCV03674 25TRCV03674

County: los-angeles

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Case Number: 25TRCV03674 Hearing Date: September 17, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

aminat abdulmalik

;

Plaintiff,

vs.

h mart, inc.

, et al.;

Defendants.

Case

No.:

25TRCV03674

Hearing

Date:

September
17, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

CROSS-DEFENDANT

AMINAT ABDULMALIK'S MOTION TO STRIKE PUNITIVE DAMAGES FROM CROSS-COMPLAINT

MOVING PARTY: Cross-Defendant, Aminat
Abdulmalik

RESPONDING

PARTY: No opposition.

(1)

Cross-Defendant

Aminat Abdulmalik's Motion to Strike Punitive Damages from Cross-Complaint is DENIED
pursuant to Code of Civil Procedure section 435.

The Court considers the moving papers filed on August 19, 2026. To date, no opposition brief has been filed.

Factual

Background

On October 27, 2025, plaintiff Aminat Abdulmalik filed the Complaint against defendants H Mary, Inc., H Mart Torrance, LLC, Best Freedom Security, Inc., Javier Gonzalez, Jung Sang Hoon, and DOES 1 through 50. The Complaint includes the following causes of action: (1) Intentional Infliction of Emotional Distress; (2) Civil Assault; (3) Civil Battery; (4) Negligence; (5) False Imprisonment; (6) Violation of Unruh Civil Rights Act (C.C. § 51); and (7) Violation of Bane Act (C.C. § 52.)

On February 2, 2026, cross-complainants H Mart Torrance, LLC and Jung Sanghoon filed their cross-complaint against cross-defendants Javier Gonazlez,

Best Freedom Security, Inc., and ROES 1 through 75. The cross-complaint includes the following causes of action: (1) Total Indemnity; (2) Partial Indemnity; (3) Express Indemnity; and (4) Declaratory Relief.

On June 16, 2026, cross-complainant Javier Gonzalez filed his cross-complaint against cross-defendants Aminat Abdulmalik, Jung Sang Hoon, and DOES 1 through 50. The cross-complaint includes the following causes of action: (1) Indemnification; (2) Apportionment of Fault; (3) Declaratory Relief; and (4) Intentional Tort.

On August 13, 2026, Abdulmalik's counsel issued a meet-and-confer letter to Gonzalez's counsel, asserting that Gonzalez's claims for punitive damages, as well as the non-existent causes of action for assault and battery, were inadequately pleaded. (Declaration of Eddie B. Dennis ("Dennis Decl."), ¶ 3, Exh. 2.) Abdulmalik's counsel requested that Gonzalez's counsel confirm the filing of an amended complaint by 5:00 p.m. on August 7, 2026, to avoid facing Abdulmalik's demurrer and motion to strike. (Dennis Decl., ¶ 3, Exh. 2.) Subsequently, on the same day, Abdulmalik's counsel amended the deadline to 5:00 p.m. on August 17, 2026. (Dennis Decl., ¶ 3, Exh. 2.) Nevertheless, Gonzalez's counsel did not respond nor file an amended complaint. (Dennis Decl., ¶ 3.)

LEGAL STANDARD

Any party, within the time allowed to respond to a pleading, may serve and file a notice of motion to strike the whole or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1).) The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 ["Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded"].) The court may also strike all or any part of any pleading not drawn or filed in conformity with California law, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) An immaterial or irrelevant allegation is one that is not essential to the statement of a claim or defense; is neither pertinent to nor supported by an

otherwise sufficient claim or defense; or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subd. (b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

“In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff. [Citations.] In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth. [Citations.] In ruling on a motion to strike, courts do not read allegations in isolation. [Citation.]” (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255, international citations omitted.) This holistic approach means that even if a particular allegation appears conclusory on its face, it will be sustained if the surrounding factual allegations in the pleading provide it with adequate support.

MEET AND CONFER REQUIREMENT

Before motion to strike, the moving party is required to meet and confer in person, by telephone, or via video conference with the party that filed the pleading that is subject to the motion, to determine whether an agreement can be reached that would resolve the objections to be raised in the motion to strike. (Code Civ. Proc., § 435.5, subd. (a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc., § 435.5, subd. (a)(2).) Thereafter, the moving party shall file and serve a declaration detailing their meet and confer efforts. (Code Civ. Proc., § 435.5, subd. (a)(3).) A determination by the court that the meet and confer process was inadequate shall not be grounds to grant or deny a motion to strike. (Code Civil Proc., § 435.5, subd. (a)(4).)

On August 13, 2026, Abdulmalik’s counsel issued a meet-and-confer letter to Gonzalez’s counsel, asserting that Gonzalez’s claims for punitive damages, as well as the non-existent causes of action for assault and battery, were inadequately pleaded. (Dennis Decl., ¶ 3, Exh. 2.) Abdulmalik’s counsel requested that Gonzalez’s counsel confirm the filing of an amended

complaint by 5:00 p.m. on August 7, 2026, to avoid facing Abdulmalik's demurrer and motion to strike. (Dennis Decl., ¶ 3, Exh. 2.) Subsequently, on the same day, Abdulmalik's counsel amended the deadline to 5:00 p.m. on August 17, 2026. (Dennis Decl., ¶ 3, Exh. 2.) Nevertheless, Gonzalez's counsel did not respond nor file an amended complaint. (Dennis Decl., ¶ 3.)

Although the parties did not engage in the meet-and-confer process as required, the Court will still consider the merits of the motion to strike. An insufficient meet-and-confer process is not a valid reason to deny or grant a motion to strike.

DISCUSSION

Abdulmalik seeks to strike a claim for punitive damages found on page 3 of Gonzalez's cross-complaint. (Notice of MTS, p. 2:5-13.) Abdulmalik contends that Gonzalez "has alleged no facts establishing an intent to cause injury, no facts demonstrating despicable conduct undertaken with willful and conscious disregard of another's rights or safety, and no facts supporting oppression or fraud." (MTS, p. 4:21-23.) The Court disagrees, finding that Gonzalez has adequately pleaded malice as defined by Civil Code section 3294, subdivision (c)(1).

Punitive damages may be imposed where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).) "It is essential that the facts and circumstances which constitute the fraud should be set out clearly, concisely, and with sufficient particularity to apprise the opposite party of what he is called on to answer, and to enable the court to determine whether, on the facts pleaded, there is any foundation, prima facie at least, for the charge of fraud. [Citation.]" (Lehto v. Underground Constr. Co. (1977) 69 Cal.App.3d 933, 845, internal citation and quotations omitted.)

A motion to strike punitive damages is properly granted when a plaintiff does not state a prima facie claim for punitive damages. (Turman v. Turning Point of Cent. California, Inc. (2010) 191 Cal.App.4th 53, 63.)

"Malice" is conduct intended by the defendant to cause injury to the plaintiff or despicable conduct carried

on with a willful and conscious disregard of the rights or safety of others. (Civ. Code, § 3294, subd. (c)(1).) “ ‘Punitive damages are proper only when the

tortious conduct rises to levels of extreme indifference to the plaintiff's

rights, a level which decent citizens should not have to tolerate.’ [Citation.]” (Lackner v. North (2006) 135

Cal.App.4th 1188, 1210.)

“As amended to include

[despicable], the [Civil Code section 3294] plainly indicates that absent an

intent to injure the plaintiff, ‘malice’ requires more than a ‘willful and

conscious’ disregard of the plaintiffs’ interests. The additional component of ‘despicable

conduct’ must be found.” (College

Hospital Inc. v. Superior Court (1994) 8 Cal.4th 704, 725.) The statute’s reference to despicable conduct

represents a “new substantive limitation on punitive damage awards.” (Ibid.) Despicable conduct is “conduct which is so

vile, base, contemptible, miserable, wretched or loathsome that it would be

looked down upon and despised by ordinary decent people. Such conduct has been described as ‘having

the character of outrage frequently associated with crime.’ ” (Tomaselli v. Transamerica Ins. Co.

(1994) 25 Cal.App.4th 1269, 1287.) Further, “[t]here must be evidence that

defendant acted with knowledge of the probable dangerous consequences to

plaintiff’s interests and deliberately failed to avoid these consequences.” (Flyer’s Body Shop Profit Sharing Plan v.

Ticor Title Ins. Co. (1986) 185 Cal.App.3d 1149, 1155.)

Gonzalez asserts that on

December 24, 2023, he was directed to question Abdulmalik, who was suspected of

theft at the H-Mart in Torrance, California.

(Compl., p. 4.) During the course

of the questioning, Abdulmalik allegedly spat on Gonzalez while using profane

language. (Compl., p. 4.) The following day, Abdulmalik is said to have

returned with acquaintances and verbally assaulted Gonzalez, employing vulgar

language and making threats to his life.

(Compl., p. 4.) As a result,

Gonzalez feared for his safety and well-being and experienced physical and

mental injuries. (Compl., p. 4.)

The Court concludes that the

actions attributed to Abdulmalik exemplify malice as defined by Civil Code

section 3294. Specifically, the Court

finds that the allegations presented are sufficient to demonstrate that

Abdulmalik intended to inflict injury upon Gonzalez and engaged in conduct

deemed despicable, characterized by a willful and conscious disregard for

Gonzalez’s rights and safety.

It is alleged that Abdulmalik spat on Gonzalez while using offensive language and subsequently threatened his life. In her brief, Abdulmalik contends that this action is insufficient to establish that she "acted with an intent to injure" Gonzalez. (MTS, p. 8:16-19.) The Court finds this assertion perplexing, as the alleged act of spitting on Gonzalez, followed by a threat to his life, clearly indicates an intent to cause harm.

Abdulmalik references *Grieves*

v. Superior Court (1984) 157 Cal.App.3d 159, 166, to support her claim that "[a]llegations of intentional wrongdoing, standing alone, are insufficient." (MTS, p. 8:23-25.) The Court agrees that "[t]he mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages." (Ibid.) However, Gonzalez is not presenting a conclusory claim of an intentional tort; he provides specific facts that illustrate Abdulmalik's intent to cause harm.

Furthermore, Abdulmalik

asserts that "[p]leading assault and battery does not automatically support punitive damages[.]" again relying on *Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166. (MTS, p. 9:15-20.) This interpretation of the case is misguided. The Court of Appeal determined that "[t]he mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. [Citation.] Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim. [Citation.]" (Ibid., internal citations omitted.) This does not imply that simply alleging an intentional tort is inadequate for seeking punitive damages; rather, it affirms that a claim for an intentional tort can warrant punitive damages if it is demonstrated that the defendant acted with oppression, fraud, or malice. Gonzalez has demonstrated malice.

The Court further finds that

the allegations are sufficient to indicate that Abdulmalik engaged in despicable conduct carried out with a willful and conscious disregard for Gonzalez's rights and safety. Abdulmalik allegedly spat on Gonzalez, cursed at him, and threatened his life alongside several others. Spitting on a person while cursing at them, followed by a death threat the next day, constitutes conduct that ordinary decent people would look down upon and demonstrates a total

disregard for Gonzalez's rights and safety.

The sequential and escalating nature of these actions over a two-day period strengthens the inference that Abdulmalik acted with a willful and conscious disregard for Gonzalez's rights and safety.

Abdulmalik also claims that

Gonzalez's allegations are insufficient because he "does not allege that Ms.

Abdulmalik acted with an intent to injure, engaged in despicable conduct with willful and conscious disregard, subjected [Gonzalez] to cruel and unjust hardship, or committed fraud." (MTS, p.

9:4-7.) The Court finds that this

argument lacks merit. A claimant is not

required to explicitly assert that the respondent acted with an intent to

injure, engaged in despicable conduct with willful and conscious disregard,

subjected claimant to cruel and unjust hardship, or committed fraud. The Court may infer this from the allegations.

Accordingly, Abdulmalik's

motion to strike is DENIED.

ORDERS

1) Cross-Defendant

Aminat Abdulmalik's Motion to Strike Punitive Damages from Cross-Complaint is DENIED.

2) Abdulmalik is ordered to give notice of the Court's ruling.

IT IS SO ORDERED.

DATED: September 17, 2026

Tamara
Hall

Judge
of the Superior Court